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Key California Assembly Committee Advances Bill to Limit 'forever Chemicals' in Drinking Water

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WASHINGTON, April 9 -- The Environmental Working Group issued the following news release:

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Key California Assembly committee advances bill to limit 'forever chemicals' in drinking water

A.B. 794 would set new state tap water standards to tackle PFAS contamination

SACRAMENTO, Calif. - California is one step closer to protecting millions of residents from tap water contaminated by the toxic "forever chemicals" known as PFAS.

The Assembly's Environmental Safety and Toxics Materials Committee

on April 8 advanced a drinking water bill that includes setting enforceable state PFAS water standards.

Assembly Bill 794, introduced by Assemblymember Jesse Gabriel (D-Encino), would require that the standards be at least as protective as existing federal PFAS drinking water limits. And it would leave the door open to the state setting even stricter standards in the future.

"Californians shouldn't have to worry that their drinking water has been contaminated by toxic 'forever chemicals' linked to deadly cancers and other serious health harms," Gabriel said.

"We are taking action to ensure that California leads with strong, science-based health standards that will protect our communities from harmful PFAS chemicals, regardless of what happens at the federal level," he added.

In April 2024, the Biden administration's Environmental Protection Agency finalized the first-ever national drinking water standards to protect Americans from PFAS exposure. The new rules set strict limits for six PFAS, including PFOA and PFOS, which are capped at 4 parts per trillion. The EPA also adopted a hazard index to assess the risk of cumulative exposure to several PFAS that have been detected in tap water for millions of Americans.

Corporate polluters are challenging the limits, creating concerns that the Trump EPA might agree to weaken or undo the landmark standards.

"If the EPA rolls back its PFAS drinking water standards, it would be nothing short of a betrayal of public health," said David Andrews, Ph.D., acting chief science officer at the Environmental Working Group, which is co-sponsoring A.B. 794, along with Clean Water Action.

"There is no safe level of exposure to PFAS, especially to PFOA and PFOS. Even low doses of these chemicals have been linked to serious health harms," he said.

Safeguarding millions of Californians

If enacted, the bill would act as a backstop for California in tackling PFAS, even if the EPA rolls back the federal limits. It would require the state water board to create and enforce emergency standards for PFAS in drinking water that are at least as protective as the existing federal rule. The state could also conduct its own analysis and pursue

stronger protections if warranted.

"California law states that safe drinking water is a human right," said Andria Ventura, legislative and policy director for Clean Water Action. "Given the Trump administration's record of putting corporate polluter interests above public health, A.B. 794 is essential to safeguard the tens of millions of Californians affected by PFAS in their water sources."

Concerns over PFAS contamination in California are growing. Recent tests suggest that nearly 12 million Californians are exposed to PFAS through their tap water. Despite this, the state lags behind at least 11 others in regulating these dangerous substances.

PFAS are known as forever chemicals because once released into the environment they do not break down and they can build up in the body. The Centers for Disease Control and Prevention has detected PFAS in the blood of 99 percent of Americans, including newborn babies.

Gabriel said his legislation is urgently needed to protect public health, especially as legal challenges threaten the future of federal standards.

"If PFAS polluters successfully persuade the Trump EPA to weaken or eliminate federal PFAS drinking water protections, millions of Californians will have no protections from PFAS in their tap water," said Scott Faber, EWG's senior vice president for government affairs.

Call for 'bold action'

For decades, polluters hid the health harms of PFAS from regulators, workers and neighboring communities. PFAS have been linked to cancer, reproductive harm, immune system damage and other serious health problems, even at low levels.

"California must take bold action now to set its own drinking water limits to make sure protections from these toxic forever chemicals don't depend on the Trump EPA," added Faber.

Activated carbon, reverse osmosis and ion exchange systems are examples of available technologies and approaches that can help to protect against PFAS exposure. The EPA has noted that the Bipartisan Infrastructure Law includes $21 billion to help upgrade drinking water systems to incorporate such technologies.

California currently lags behind at least 11 other states in regulating PFAS, leaving millions of residents at risk of exposure to dangerous forever chemicals. By setting enforceable state limits on PFAS, A.B. 794 would help to prevent thousands of deaths and serious illnesses, as well as future medical expenses and environmental cleanup costs.

The Assembly's appropriations committee will next consider A.B. 794.

A coalition of health and environmental groups support the bill, including the American College of Obstetricians and Gynecologists, California Environmental Voters and the Sierra Club.

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The Environmental Working Group (EWG) is a nonprofit, non-partisan organization that empowers people to live healthier lives in a healthier environment. Through research, advocacy and unique education tools, EWG drives consumer choice and civic action.

Since the organization's founding during the campaign to pass the landmark Clean Water Act in 1972, Clean Water Action has worked to win strong health and environmental protections by bringing issue expertise, solution-oriented thinking, and people power to the table. www.cleanwater.org

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